

**IN THE COURT OF PHALIT SHARMA,
ADDITIONAL SESSION JUDGE : GURUGRAM.
[UID : HR-0105]**

Case type	:	Bail application.
Institution Number	:	202 dated 13.09.2021.
Date of institution	:	13.09.2021
Date of order	:	15.09.2021.

Sudhir Mehta son of Shri Makhan Chandra Mehta, Aged about 44 years, resident of Sankalp, 28, Mahaveer Nagar, Road No.2, behind Tulsi Niketan, Sector No.4, Hiran Magri, Udaipur (Rajasthan).

.....Applicants-accused

No.170.

Versus

Serious Fraud Investigation Office, through Shri Prashant Baliyan, Deputy Director.

.....Respondent.

**APPLICATION UNDER SECTION 70(2)
OF Cr.P.C. FOR RECALLING OF
ORDERS DATED 04.08.2021 AND
08.09.2021 AND CANCELLATION
OF WARRANT OF ARREST.**

Argued by :

Shri Neeraj Dev Gaur, counsel for the applicant-accused.
Shri Hari Kishan, Senior Public Prosecutor for the SFIO
along with Shri L.S. Raghav, Advocate, Special
Prosecutor.

ORDER :

This order of mine will dispose of an application

(Phalit Sharma)
Additional Sessions Judge,
Gurugram (UID HR0105)
15.09.2021.

moved on behalf of Sudhir Mehta, accused No.170 inter alia under Section 70(2) Cr.P.C. for recall of orders dated 04.08.2021 and 04.09.2021 and cancellation of warrant of arrest in view of the law laid down by Hon'ble apex Court in **Aman Preet Singh Vs. CBI through Director, Criminal Appeal No.929 of 2021, decided on dated 2.9.2021 and Siddharth Vs. The State of Uttar Pradesh and another : Criminal Appeal No.838 of 2021 decided on dated 16.8.2021.**

2. The prosecution story, in brief, is that on the complaint of Serious Fraud Investigating Officer against M/s Aadarsh Build Estate Ltd. and 187 other persons including the applicant arrayed as accused No.170, learned predecessor of this Court vide detailed order dated 3.6.2019 took cognizance of commission of offences punishable under Sections 447 of Companies Act, 2013, Sections 417, 418, 420 read with Section 120-B IPC and Section 58(a) of Companies Act, 1956 and then initially bailable warrants and non-bailable warrants have been issued against many accused including the applicant-accused; that, vide order dated 20.8.2020, application for anticipatory bail of the applicant-accused was dismissed and then vide order dated 4.8.2021 and 8.9.2021, this Court issued warrant of arrest against the applicant-accused and now the case is fixed for 23.12.2021.

3. Learned counsel for the applicant-accused while placing reliance on the law laid down by Hon'ble apex Court in **Amanpreet Singh's case and Siddarth's case (supra)**, has prayed to recall the order of issuance of warrant of arrest against the applicant-accused because arrest of the applicant-accused is not necessary and case of applicant-accused is duly covered with the judgments cited. Hence, he has prayed to recall the orders of issuance of warrant of arrest.

4. On the other hand, learned Senior Public Prosecutor for the SFIO along with Shri L.S. Raghav, Advocate, Special Prosecutor has argued that in the instant case, the application for anticipatory bail of the applicant-accused is already pending before Hon'ble High Court, a fact concealed in the present application, hence, this application is not maintainable here. He has further argued that the benefit of the law cited is not available to the applicant-accused who is summoned for commission of offences punishable under Companies Act as well which is a special statute having prevailing impact over the general law. Finally, he has prayed to dismiss the application.

5. With due regard to the rival contentions and facts on record, this Court is of the view that present application simply deserves to be dismissed on the ground of concealment on the part of the applicant-accused, who has concealed from this Court

that after dismissal of anticipatory bail of the applicant-accused by the learned predecessor of this Court on dated 20.08.2020, the applicant-accused had approached Hon'ble High Court for bail and now matter is fixed for 01.11.2021. Hence, the bail application deserves to be dismissed solely on this ground.

6. Otherwise also, once, the Hon'ble High Court is already ceased of the matter and the prayer of the applicant-accused about bail is yet to be decided and there is also no stay granted by Hon'ble High Court as an interim relief to the applicant-accused from his arrest, this Court as such cannot entertain his request made in the present application. Hence, the present application is dismissed being devoid of merit.

8. However, anything expressed above to decide the present bail application, would have any bearing on the merits of the case.

Papers be tagged with the main case file.

Pronounced in open Court.
Dated: 15.09.2021
Rakesh SG-I

(Phalit Sharma)
Additional Sessions Judge,
Gurugram. [UID : HR0105]

Note: Certified that this order consists of four **pages** and each page has been checked and signed by me.

Dated : 15.09.2021.

(Phalit Sharma)
Additional Sessions Judge,
Gurugram. [UID : HR0105]

(Phalit Sharma)
Additional Sessions Judge,
Gurugram (UID HR0105)
15.09.2021.